

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Untimely-Notice Judgment

Filed: March 11, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Judgment following jurisdictional dismissal.

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

In accordance with the order entered this date, the appeal is DISMISSED for lack of appellate jurisdiction. The district court entered a valid partial final judgment under Federal Rule of Civil Procedure 54(b) on February 4, 2026. The ordinary thirty-day period to appeal expired Friday, March 6, 2026. Asterglen filed its notice on Monday, March 9, after the deadline had passed.

No timely tolling motion, extension order under Federal Rule of Appellate Procedure 4(a)(5), or reopening order under Rule 4(a)(6) appears in the transmitted record. The first business day following the weekend did not extend a deadline that had expired on the preceding Friday. The late notice therefore did not invoke jurisdiction under 28 U.S.C. §§ 1291 and 2107.

The Court expresses no view on the merits of Count I or the interpretation of Section 9.2.

Costs and Further Process

Each side shall bear its own appellate costs. This allocation is stated expressly and supersedes any default rule that might otherwise apply following dismissal. No merits fee or sanction is awarded.

The dismissal does not vacate the district court's partial judgment. Count I remains dismissed with prejudice in favor of Copper Kestrel. Narrowed Count II against Meridian Silt remains pending, and the district court may continue proceedings on that claim. Copper Kestrel's amended counterclaim remains resolved by its dismissal with prejudice.

The ordinary fourteen-day rehearing period begins with entry of this judgment and expires March 25, 2026. If no timely petition or qualifying order intervenes, the mandate is scheduled to issue seven days later, on April 1, 2026, under Federal Rule of Appellate Procedure 41. A party seeking different treatment must use an authorized filing and obtain appropriate relief; this judgment itself grants none.

Entered March 11, 2026 at the direction of the Court.

Clerk, United States Court of Appeals for the Fourth Circuit Authorized clerk designation
APPEAL DISMISSED